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7 Attorney for Petitioner, NORMA ALICIA GOMEZ

8 SUPERIOR COURT OF THE STATE OF CALIFORNIA
9 FOR THE COUNTY OF LOS ANGELES

10	Estate of	)	Case No.
		)	
11	MARIA TERESA ALCANTAR AKA	)	NOMINATION OF PERSONAL
12	MARIA TERE ALCANTAR AKA	)	REPRESENTATIVE
	THERESA ALCANTAR AKA	)	
13	MARIA TERESA ALCANTAR-HERNANDEZ	)	
	Deceased	)	

14 I, VICTOR ALCANTAR HERNANDEZ, being an adult, 18 years of
15 age, hereby nominate my sister NORMA ALICIA GOMEZ, to serve as
16 the personal representative of the estate of my deceased sister
17 MARIA TERESA ALCANTAR AKA MARIA TERE ALCANTAR AKA THERESA
18 ALCANTAR AKA MARIA TERESA ALCANTAR-HERNANDEZ.

19
20 I declare under penalty of perjury under the laws of the
21 State of California that the foregoing is true and correct.
22 Executed at Mexico.

23
24 Dated: _____

25
26 _____
27 VICTOR ALCANTAR HERNANDEZ
28

- A. A bond is a form of insurance to replace assets that may be mismanaged or stolen by the executor or administrator (the estate's **personal representative**). The cost of the bond is paid from the assets of the estate.
- B. A bond may not be required if the decedent's will admitted to probate waives a bond and the court approves.
- C. If the decedent's will does not waive bond, or if the decedent died without a will, the law ordinarily requires the personal representative to give a bond approved and ordered by the court. However, all persons eligible to receive a share of the estate may waive the requirement of a bond. If they all waive bond and the court approves, the personal representative will NOT have to give a bond.
- D. **If bond is not ordered by the court, and the estate suffers loss because the personal representative fails to properly perform the duties of the office, the loss or some part of it may not be recoverable from the personal representative. If so, your share of the estate may be partially or entirely lost.**
- E. You may waive the requirement of a bond by signing this form and delivering it to the petitioner for appointment of a personal representative or to the petitioner's attorney. Your waiver cannot be withdrawn after the court appoints the personal representative without requiring a bond. However, if you sign a waiver of bond, you may later petition the court to require a bond.
- F. A guardian ad litem or other legal representative with specific authority under law to waive bond must sign for a minor, an incapacitated person, an unascertained beneficiary, or a designated class of persons who are not ascertained or not yet in being. See Judicial Council forms DE-350 and DE-351 and Probate Code section 1003.
- G. **If you do not understand this form, do not sign it until you have asked a lawyer (who is independent of the lawyer for the proposed personal representative) to explain it to you.**

1. I have read and understand paragraphs A through G above.
2. I understand that before signing this form, I am free to consult with a lawyer of my choice concerning the possible consequences to me of waiving bond.
3. I understand that I do not have to waive bond to allow the estate administration to begin or proceed, or to receive my share of the estate.
4. I WAIVE the posting of bond in this estate by (name of personal representative): Petitioner, Norma A. Gomez

(SIGNATURE)